

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 200

AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 20-26-5-4.1 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.1. (a) This section applies to a vendor contract entered into, amended, or renewed after June 30, 2026.**

(b) As used in this section, "automatic renewal provision" means a provision in a vendor contract that provides for the automatic renewal of the contract unless the governing body of a school corporation or the equivalent authority for a charter school gives notice to the vendor that the school corporation or charter school intends to terminate the vendor contract at the end of the contract term.

(c) As used in this section, "choice of law provision" means a term within a vendor contract that subjects the vendor contract to the laws of a state other than Indiana.

(d) As used in this section, "indemnity provision" means a provision, a clause, a covenant, or an agreement that:

- (1) is contained in, collateral to, or affecting a vendor contract; and**
- (2) purports to indemnify, defend, or hold harmless, or has the effect of indemnifying, defending, or holding harmless, a vendor against liability for loss or damage resulting from:**
 - (A) negligence;**

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(B) intentional acts; or

(C) omissions;

of the vendor or an agent, employee, servant, or independent contractor that is directly responsible to the vendor.

(e) As used in this section, "vendor contract" means a contract between a governing body of a school corporation or the equivalent authority for a charter school and a vendor in which the vendor promises to provide goods or services.

(f) Notwithstanding any other law, an indemnity provision in a vendor contract under this section is:

(1) against public policy; and

(2) void and unenforceable.

(g) Notwithstanding any other law, a choice of law provision in a vendor contract under this section is:

(1) against public policy; and

(2) void and unenforceable.

A vendor contract is only subject to the laws of the state of Indiana.

(h) Notwithstanding any other law, an automatic renewal provision in a vendor contract under this section is:

(1) against public policy; and

(2) void and unenforceable.

SECTION 2. IC 20-26-5-48 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 48. If a public school, including a charter school, allows a postsecondary educational institution to provide information regarding postsecondary education or training to students of the public school, the public school shall allow military personnel to provide, in the same manner as the postsecondary educational institution, information regarding educational opportunities and financial education benefits available for service in the armed forces, national guard, or reserve component of the armed forces or national guard.**

SECTION 3. IC 20-26-20-4, AS ADDED BY P.L.86-2020, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4. (a) Upon request by an organization under section 3 of this chapter, a public school shall provide at least one (1) time each school year, a day and time, which may be during the school day or at a time where a majority of students and their families will be present on school property, as approved by the public school, for the representatives of the organization to provide information to students on school property as described in section 3 of this chapter.**

(b) An organization may submit a grievance to the department,



in a manner prescribed by the department, if a public school refuses to allow an organization to provide information to students on school property as required by subsection (a).



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

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